Wings Arena
50 Barry Place
Stamford, CT 06902
Phone: 303-906-9002
Fax:

New Waiver

WINGS ARENA
VISITOR / PARTICIPANT RELEASE OF LIABILITY, WAIVER OF CLAIMS, ASSUMPTION OF RISKS & INDEMNITY AGREEMENT

WARNING: PLEASE READ CAREFULLY BEFORE SIGNING! THIS IS A RELEASE OF LIABILITY & WAIVER OF CERTAIN LEGAL RIGHTS INCLUDING THE RIGHT TO SUE OR CLAIM COMPENSATION.

In consideration of being allowed to enter Wings Arena, use any of the facilities, participate in any program, related events and/or activities held at Wings Arena, I, the undersigned, for myself and for any minor children listed below (for whom I have the capacity to contract), represent, acknowledge, appreciate, and agree that:

1. **The risk of injury from the presence, use and engagement in activities and programs at Wings Arena is significant, including the potential for permanent paralysis and death, and while particular rules, policies, equipment, and personal discipline may reduce this risk, the risk of serious injury or death does exist; and**
2. **In addition to these risks, due to the high level of threat to my health and well-being (and that of any of my minor children) arising from the Coronavirus (COVID-19) pandemic, any such minor children and I are at risk of contracting this virus while at Wings Arena; and**
3. **If I, or the minor children, do contract COVID-19, it may result in serious illness or death and that others with whom I, or they, have contact with are also at serious risk; and**
4. **I understand that despite the efforts of Wings Arena to make sanitizing agents available, post signage directing visitors and employees, perform extra cleaning of its equipment and facilities, there can be no assurance that such precautions are sufficient or that they will prevent the spread of COVID-19 to persons who enter or use the facility; and**
5. **I KNOWINGLY AND FREELY ASSUME ALL SUCH RISKS, for myself, and for any minor children, both known and unknown of entering the facility, using the equipment or participation in any activity or program at Wings Arena, EVEN IF ARISING FROM THE NEGLIGENCE OF THE RELEASEES or others, and assume full responsibility for my, and for any minor children, use of the facility and participation in any activities or programs; and,**
6. **I willingly agree to comply with the stated and customary terms and conditions for the use of the Wings Arena and participation in any activities or programs, including those special postings relating to extra precautions to be taken by me in light of the COVID-19 pandemic, and how they relate to use of the facility and participation in any activity or programs by me, and my minor children. If, however, I observe any unusual significant hazard during my presence or participation, I will remove myself and minor children from participation and bring such to the attention of the nearest Wings Arena employee immediately; and,**
7. **For safety and hygienic reasons, the minor children shall refrain from bringing their own toys to the Wings Arena. Disruptive or inappropriate behavior will not be tolerated. In these circumstances, the parent / legal guardian will be notified immediately. Children will be released ONLY to a person listed below or another authorized person. Medications will not be administered by Wings Arena staff.**
8. **I, for myself and on behalf of my heirs, assigns, personal representatives and next of kin (including any minor children), HEREBY RELEASE, INDEMNIFY, AND AGREE TO HOLD HARMLESS WINGS ARENA, their officers, managers, officials, agents and/or employees, other participants, sponsoring agencies, sponsors, advertisers, and, if applicable, owners and lessors of premises used to conduct the activity or event ("Releasees"), WITH RESPECT TO ANY AND ALL LIABILITIES, CLAIMS, PENALTIES, LOSSES, OR EXPENSES (INCLUDING ATTORNEYS' FEES), OF ANY KIND OR NATURE WHATSOEVER, WHETHER RELATED TO BODILY INJURY, DISABILITY, ILLNESS, DEATH, PROPERTY DAMAGE OR ANY OTHER FORM OF INJURY OR LOSS TO MYSELF (AND TO ANY MINOR**

CHILDREN FOR WHOM I HAVE THE CAPACITY TO CONTRACT) OR TO PROPERTY, ARISING FROM ANY EVENT AT WINGS ARENA, to the fullest extent permitted by law; and

9. Wings Arena may use Cameras or Video Cameras in the Non-Private areas of the Facility. Pictures or Video Filming is used for production of events and to identify Security and Safety Concerns in the Facility. I, for myself, and the minor children for whom I have the capacity to contract, agree that Wings Arena may use any Pictures or Audio / Visual recordings for Promotional, Advertising or Educational Purposes.
10. This Waiver has been executed under and shall be governed by the laws of the state of Connecticut without regard to the state's conflict of law principles. The parties covenant and agree that any and all claims, disputes, and actions arising from this Waiver shall be filed and heard in the venue of Fairfield County, state of Connecticut and that jurisdiction shall lie in such county and state.

I acknowledge that I am also signing this Release on behalf of my minor child (children), that I am WAIVING CERTAIN RIGHTS ON BEHALF OF MY MINOR CHILD (CHILDREN) that my child (children) otherwise have, and that MY CHILD (CHILDREN) SHALL BE BOUND BY ALL THE TERMS OF THIS RELEASE. I understand that this Release will apply for each and every day my child (children) is (are) present, uses or is engaged in activities or programs at Wings Arena.
I understand that this Release is a contract and, to the fullest extent permitted by law, shall be binding on me and my assignees, subrogators, distributors, heirs, next of kin, executors and personal representatives. If any part of this Release is deemed to be unenforceable, the remaining terms shall be an enforceable contract between the parties.

Signature Consent:_____
I accept the terms & conditions.
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Personal Information

Name:_____ **Email:**_____

Address:_____ **Phone#**_____

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